

LAW & MOTION CALENDAR
TENTATIVE RULINGS

June 18, 2026

9:00 AM

CX-101

JUDGE WILLIAM D. CLASTER

Department CX101 Phone Number: (657) 622-5301

The Court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5301. The Court will not entertain a request for continuance nor filing of further documents once the ruling has been posted.

APPEARANCES: Appearances, whether remote or in person, must be in compliance with new Code of Civil Procedure §367.75, California Rules of Court, Rule 3.672, and Superior Court of California, County of Orange, Appearance Procedure and Information, Civil Unlimited and Complex, located at https://www.occourts.org/media-relations/covid/Civil_Unlimited_and_Complex_Appearance_Procedure_and_Information.pdf.

COURT REPORTERS: Official court reporters (i.e. court reporters employed by the Court) are **NOT** provided for any matters in this department. If a party desires a record of a law and motion proceeding, it will be the party’s responsibility to provide a court reporter. Parties must comply with the Court’s policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court’s website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.
- [Civil Limited, Unlimited and Complex \(Updated June 11, 2020\)](#)

#	CASE NAME	MATTER
8	Nguyen vs. Hands on Bicycles, Inc. 2023-01343626	Plaintiff’s Motion for Approval of Class Settlement Plaintiff has not submitted a response to the Court’s May 1, 2026 minute order by the June 8, 2026 deadline, the hearing on the motion for preliminary approval of class action settlement is CONTINUED to August 7, 2026 at 9:00 a.m. in Department CX101.
10	Brand vs. Pacific City Operations, LLC 2024-0145965	Plaintiff’s Motion to Approve Paga Settlement The motion for approval of PAGA settlement is CONTINUED to August 14, 2026 at 9:00 a.m. in Department CX101 to permit the parties to respond to the following items of concern. Any supplemental briefing shall be filed on or before August 4, 2026. If a revised settlement agreement and/or proposed notice is submitted, a redline version showing all changes, deletions and additions must be submitted as well. In addition, Plaintiff must provide proof of service of any revised settlement agreement and supplemental papers on the LWDA. 1. Plaintiff worked for Defendant for approximately one month, from June to July of 2024. (ROA 68, ¶ 3.) He is settling his individual claims arising from this month of employment for \$117,500, over three times the gross settlement amount for 425 employees’ worth of civil penalties for a 21-month period. This leaves the distinct impression that Plaintiff agreed to settle the

		PAGA claim for a de minimis amount in exchange for a sizable personal settlement. Plaintiff’s only individual claims before the Court, from the original version of the complaint, are for wage-and-hour violations. Plaintiff may have suffered wage-and-hour violations during his employment, but he didn’t suffer six figures’ worth of wage-and-hour violations. Counsel’s supplemental declaration makes vague reference to wrongful termination claims, but there are no such claims in this case. If Plaintiff has filed a separate wrongful termination suit, please provide a copy of the complaint. If no suit has been filed, please provide a brief summary of the wrongful termination claim. 2. The outsized individual settlement award is especially concerning given the dearth of analysis in counsel’s claim valuation, which is insufficient for the Court to discharge its approval duties. “[A] trial court should evaluate a PAGA settlement to determine whether it is fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws.” (<i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77.) To that end, for every predicate Labor Code violation except meal breaks, please provide further information about the strengths and weaknesses of Plaintiffs’ claims and Defendant’s expected defenses, including the evidence supporting both sides’ cases. (See <i>ibid.</i> (citing <i>Kullar v. Foot Locker Retail, Inc.</i> (2008) 168 Cal.App.4th 116 and <i>Dunk v. Ford Motor Co.</i> (1996) 48 Cal.App.4th 1794).) To the extent the release is meant to cover the claims included in the LWDA letter but not the complaint, those claims must be valued as well. Without limitation, supplemental papers should address the following issues: a. Plaintiff asserted he was unable to take rest breaks. Defendant denied this. What did the evidence show? Was Plaintiff able to take rest breaks or not? Was Plaintiff’s experience representative of other employees? (Counsel states no other employees were interviewed.) Was Defendant’s rest break policy compliant with applicable law and regulation? b. The rest break claim is given the same value as the meal break claim—a 0.3% violation rate. Counsel correctly states that unlike meal breaks, rest breaks cannot be formally waived. Since the 0.3% violation rate for meal breaks was based largely on waivers, what is the basis for treating rest breaks the same? Counsel points to things like employees voluntarily skipping rest breaks, but the Court has never seen a plaintiff’s counsel argue that the usual difficulties in proving rest break violations justify such a small valuation. c. Plaintiff estimates he worked one hour off-the-clock every workweek. What did the evidence show? Was Plaintiff’s off-the-clock work performed at the direction of or with the knowledge of his supervisors? Was Plaintiff’s alleged experience representative of other employees? d. Plaintiff brought claims based on miscalculation of the regular rate of pay. What bonuses or incentive payments were at issue? What did the evidence show about
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		whether those payments were discretionary? Counsel states that “after reviewing the data [it] appeared those claims are weaker.” Why? e. The reimbursement claim “was supported by policy language turned over by Defendant.” What did the policy provide? How did it support the claim? f. Plaintiff asserted that that Defendant failed to pay out all tips earned. What did the evidence show? 3. In the notice, the released claims should be described more fully than simply by reference to the complaint and LWDA letter. The notice should also clarify that employees’ individual claims against Defendant aren’t released.
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